Filing # 259211698 E-Filed 10/14/2026 03:33:52 PM

IN THE DISTRICT COURT OF APPEAL
FOR THE THIRD DISTRICT, STATE OF FLORIDA

H.M. SERVICES PROTECTION, INC.,

Petitioner,

v.

ERIC MOORE,

Respondent,

PETITION FOR WRIT OF CERTIORARI

ERIC MOORE V. PATRICE SURLERIN ANTILUS,
SEAN CASIDY, MARC ANTHONY REID,
JAAWILSON LIZAIRE, BRANDON CEASAR,
ANDY LOUIS JEAN, STACY LYNSUE,
JULIO DAREN, AL RAMJAI, MICHAEL VARGAS,
H.M. SERVICES PROTECTION, INC.,
1100 WEST INVESTMENTS, LLC d/b/a
MONDRIAN SOUTH BEACH,
LT CASE NO. 2023-011323-CA-01

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PETITION FOR WRIT OF CERTIORARI

The Petitioner, H.M. SERVICES PROTECTION, INC. ("Petitioner" or "H.M. Services"), by and through undersigned counsel, files this *Petition for Writ of Certiorari* pursuant to Florida Rules of Appellate Procedure Rule 9.100. H.M. Services seeks review of a nonfinal order of the Circuit Court of the Eleventh Judicial Circuit, rendered on September 30, 2026, which granted Respondent's demand to depose H.M. Services' non-testifying consulting expert without the requisite showing under Florida Rules of Civil Procedure Rule 1.280(5)(B).

PRELIMINARY STATEMENT

Petitioner, H.M. SERVICES PROTECTION, INC., will be referred to by name, or by "Petitioner" or "H.M. Services." The Respondent, ERIC MOORE, will be referred to by "Respondent." All references to the Appendix will be noted as "See App. at" followed by the page number.

BASIS FOR INVOKING JURISDICTION OF COURT

This Honorable Court has jurisdiction to issue a Writ of Certiorari under Article V, Section 4(b)(3) of the Florida Constitution and Florida Rules of Appellate Procedure Rule 9.100. "[A] petition for certiorari . . . [must] be filed within 30 days of rendition of the order to be reviewed." Fla. R. App. P. Rule 9.100(c)(1). "An order is rendered when a signed, written order is filed with

the clerk of the lower tribunal." Fla. R. App. P. 9.020(h). On September 30, 2026, the trial judge entered an *Order Following the September 29, 2026 Case Management Conference*. This *Petition for Writ of Certiorari* is required by October 30, 2026; therefore, it is timely filed.

"Non-final orders that permit discovery are a classic example of the type of interlocutory order that may be reviewed by writ of certiorari." *Procter & Gamble Co. v. Swilley*, 462 So. 2d 1188, 1192 (Fla. 1st DCA 1985). "The writ [of certiorari] functions as a safety net and gives the upper court the prerogative to reach down and halt a miscarriage of justice . . ." *Broward Cnty. v. G.B.V. Int'l, Ltd.*, 787 So. 2d 838, 842 (Fla. 2001). "[A] party may petition for certiorari to seek review of a non-final order not otherwise appealable when the petitioner can establish three necessary elements: (1) the order 'depart [s] from the essential requirements of the law,' and (2) 'result[s] in material injury for the remainder of the case (3) that cannot be corrected on postjudgment appeal.' " *Keck v. Eminisor*, 104 So. 3d 359, 364 (Fla. 2012) (quoting *Williams v. Oken*, 62 So.3d 1129, 1132 (Fla. 2011)).

1. The Trial Court's Order Departs from the Essential Requirements of the Law in Two Respects.

The first element is satisfied. "A ruling constitutes a departure from the essential requirements of law when it amounts to 'a violation of a clearly established principle of law resulting in a miscarriage of justice.' " *Lake Sana*

Devs., LLC v. Miami-Dade Cnty., 306 So. 3d 169, 171 (Fla. 3d DCA 2020) (quoting *Miami-Dade Cty. v. Omnipoint Holdings, Inc.*, 863 So. 2d 195, 199 (Fla. 2003)).

As outlined below, the trial court failed to follow essential requirements of the law as it relates to recognizing the withdrawal and redesignation of a testifying expert to a non-testifying consulting expert. The trial court further failed to follow essential requirements of the law by allowing the Respondent to depose the Petitioner's non-testifying consulting expert without the Respondent making a required showing of exceptional circumstances as required by Florida Rules of Civil Procedure Rule 1.280(5)(B).

"Certiorari review is proper when it is alleged that the circuit court's interpretation of a statute violates clearly established law or when it fails to follow the dictates of a statute, and the error is sufficiently egregious as to result in a miscarriage of justice." *McCray v. State*, 230 So. 3d 495, 497 (Fla. 2d DCA 2017). The trial court's failure to apply the plain language and mandates of Florida Rules of Civil Procedure Rule 1.280(5)(B) is by definition a departure from the essential requirements of the law. "If that language is clear, unambiguous, and addresses the matter in issue, then it must be enforced as written." *Avante Villa at Jacksonville Beach, Inc. v. Breidert*, 958 So. 2d 1031, 1033 (Fla. 1st DCA 2007).

> The failure to apply a controlling legal decision or statute "is a classic departure from the essential requirements of the law." State v. Jones, 283 So. 3d 1259, 1266 (Fla. 2d DCA 2019); see also Gonzalez v. State, 15 So. 3d 37, 39 (Fla. 2d DCA 2009) ("A departure from the essential requirements of law, alternatively referred to as a violation of clearly established law, can be shown by a misapplication of the plain language in a statute."); Just. Admin. Comm'n v. Peterson, 989 So. 2d 663, 665 (Fla. 2d DCA 2008) ("When the circuit court does not apply the plain and unambiguous language of the relevant statute, it departs from the essential requirements of law.").

Hayes v. Monroe Cty., 337 So. 3d 442, 446 (Fla. 3d DCA 2022).

"If the trial court erroneously interprets or applies a controlling statute, then it violates 'clearly established law.'" *Russell v. Pasik*, 178 So. 3d 55, 58 (Fla. 2d DCA 2015).

2. Petitioner Has and Will Continue to Suffer Material Injury if its Privileged Work Product is Disclosed, Which Cannot be Remedied on Final Appeal.

The second and third elements are also satisfied. As outlined below, the moment the Petitioner's non-testifying consulting expert is deposed, such testimony cannot be taken back, nor can it be remedied on appeal because it has already occurred. Florida law recognizes that this type of privileged work product falls under this protection.

> Certiorari is the appropriate remedy when a discovery order departs from the essential requirements of the law, and thus causes material

> injury to the petitioner, without any effective remedy on appeal. Allstate Ins. Co. v. Boecher, 733 So. 2d 993 (Fla. 1999). Discovery of material protected by privilege or work product may cause irreparable injury because the erroneous discovery is deemed "cat-out-of-the-bag," in nature. See Allstate Ins. Co. v. Langston, 655 So. 2d 91 (Fla. 1995).

Huet v. Tromp, 912 So. 2d 336, 338 (Fla. 5th DCA 2005).

> "Orders requiring disclosure of 'cat out of the bag' material that is not subject to discovery by reason of privilege or by other valid reason for nondisclosure are commonly reviewed by certiorari petition because the harm caused by wrongly compelling the petitioner to disclose protected material is irreparable."

Fla. Health Scis. Ctr., Inc. v. Jackman, 407 So. 3d 553, 555 (Fla. 2d DCA 2025).

As outlined within, the Petitioner has satisfied each and every element for certiorari review and respectfully requests that the Respondent not be permitted to depose its non-testifying consulting expert in the absence of a showing of exceptional circumstances as required by Florida Rules of Civil Procedure Rule 1.280(5)(B).

FACTS ON WHICH PETITIONER RELIES

1. On August 17, 2026, H.M. Services withdrew Scott Papper (“Mr. Papper”) as its testifying expert for trial and designated him as a consulting

expert. (See App. at 5-6). This decision is permitted under Florida law as outlined below.

2. Despite this fact, the Respondent filed a *Motion to Compel Expert Discovery and Motion for Sanctions* on August 17, 2026. (See App. at 7-86).

3. In response, H.M. Services filed a *Response to Plaintiff's Motion to Compel Expert Discovery and Motion for Sanctions* on September 11, 2026. (See App. at 87-99).

4. On September 15, 2026, the trial court held a hearing on the Respondent's *Motion to Compel Expert Discovery and Motion for Sanctions.* (See App. at 100-105). At that hearing, the trial court expressly held the following:

> THE COURT: Because I don't think I can grant what you're asking for. If they pull an expert, they pull them.

(See App. at 101).

Furthermore, the trial court also held the following:

> THE COURT: I'm going to deny your motion to depose this expert. Draft an order that says: Pursuant to Mr. Keeton indicating that they're not going to call this expert, that it's a consulting expert, your motion to depose the expert is denied. However, the Court will entertain any motion in limine filed concerning the opinions of this expert.

(See App. at 103).

5. On September 18, 2026, the Respondent filed a *Motion in Limine to Preclude Defendant from Challenging Plaintiff's Jewelry Valuation as Speculative or Unreliable, or in the Alternative to Compel the Deposition of Scott Papper*. (See App. at 106-263). As outlined in that motion, the Respondent demanded that the trial court order the following:

> Precluding Defendant, its counsel, and its witnesses from arguing, suggesting, or eliciting testimony that Plaintiff's jewelry valuation should be rejected as speculative or unreliable on the ground that the jewelry was unavailable for physical inspection or that the available documentary, photographic, certification, receipt, comparable-sales, or similar evidence is categorically insufficient to support a valuation;

(See App. at 113).

6. Despite such a ruling violating numerous legal rights of H.M. Services, the trial court reversed its previous ruling on September 29, 2026, and demanded that Mr. Papper be deposed. (See App. at 264-267).

7. Notably, the Respondent did not raise or outline exceptional need or circumstances. Rather, the trial court *sua sponte* made its own determination. As outlined below, the Respondent bore the burden to show exceptional need or circumstances, and the trial court fundamentally erred in permitting such a deposition without the required showing under Florida Rule of Civil Procedure 1.280(5)(B). (See App. at 264-267).

8. The Petitioner has every right to seek appellate review of discovery orders demanding disclosure of privileged work product.

9. Through counsel, H.M. Services informed the Respondent that it would not produce privileged work product materials without a written court order mandating such disclosure. (See App. at 268-273). The reason for this condition is that certiorari review is only permitted for rendered orders.

10. Despite this legal requirement, the Respondent filed another *Motion for Sanctions for Defendant's Willful Refusal to Comply With the Court's September 29, 2026 Order Compelling Expert Discovery*. (See App. at 274-307).

11. With no time to file an objection or present a competing proposed order, the trial court granted the Respondent's proposed order on September 30, 2026 at 8:30 pm. (See App. at 308-309).

12. The trial court has not and did not rule on H.M. Services' *Objection and Motion for Protective Order as to Plaintiff's Request for the Deposition of Defendant's Consulting Expert Scott Papper*, which was filed on September 11, 2026, regarding Mr. Papper prior to the trial entering its order. (See App. at 310-319).

13. The Petitioner has filed a *Motion to Stay Order Following the September 29, 2026 Case Management Conference* as required under Fla.

R. App. P. Rule 9.310(a) on October 5, 2026. (See App. at 320-325). The trial court has not ruled on this motion.

14. The Petitioner has also filed a *Motion for Rehearing of Order Following the September 29, 2026 Case Management Conference* on October 5, 2026. (See App. at 326-331). The trial court has not ruled on this motion.

15. Despite the fundamental errors that occurred and looming appellate review, the Respondent unilaterally set Mr. Papper's deposition for October 22, 2026. (See App. at 332-334).

16. Furthermore, the Respondent filed another *Amended Motion for Sanctions for Defendant's Willful Refusal to Comply With the Court's September 29, 2026 Order Compelling Expert Discovery*. (See App. at 335-375).

17. The Petitioner also informed the trial court that it was seeking appellate review. (See App. at 376-377).

ARGUMENT IN SUPPORT OF THE PETITION

I. Trial Judge Departed from the Essential Requirements of the Law by Refusing to acknowledge Petitioner's Withdrawal and Redesignation of its Testifying Expert to a Non-testifying consulting Expert and Ordering such Deposition Without a Showing by the Respondent of Exceptional circumstances as Required by Florida Rules of Civil Procedure Rule 1.280(5)(B).

It is well established that a party is free to withdraw and redesignate its testifying expert to a non-testifying consulting expert. “A party is generally free to choose its testifying experts and may redesignate an expert as a nontestifying consultant.” *Wallace v. Citizens Prop. Ins. Corp.*, 352 So. 3d 409, 411 (Fla. 2d DCA 2022). Once this occurs, the Plaintiff must fall under the narrow exception of Florida Rules of Civil Procedure Rule 1.280(5)(B) to depose a consulting expert.

> A party may discover facts known or opinions held by an expert who has been retained or specially employed by another party in anticipation of litigation or preparation for trial and who is not expected to be called as a witness at trial, only as provided in rule 1.360(b) or upon a showing of exceptional circumstances under which it is impracticable for the party seeking discovery to obtain facts or opinions on the same subject by other means.\

Id.

“While Florida Rule of Civil Procedure 1.280(b)(5)(B) allows for a party to depose another party's non-testifying expert witness, the rule plainly requires the party seeking to depose the non-testifying expert to make a showing of exceptional circumstances.” *Gomes v. Maniglia*, 401 So. 3d 437, 438 (Fla. 3d DCA 2024). In other words, if an expert witness is withdrawn, exceptional circumstances must be demonstrated to obtain discovery relating to the facts known to or opinions held by the consulting expert.

“Florida Rule of Civil Procedure 1.280(b)(3)(B) creates a work product privilege as to ‘facts known or opinions held by an expert who has been retained or specially employed by another party in anticipation of litigation or preparation for trial and who is not expected to be called as a witness.’ ” *Ruiz v. Brea*, 489 So. 2d 1136, 1137 (Fla. 3d DCA 1986). “The rule has been designated as "a remnant of the 'work products' privilege," and imposes the standard of "exceptional circumstances" upon the party seeking to depose the adversary's nontestifying expert.” *Wackenhut Corp. v. Crant-Heisz Enters., Inc.*, 451 So. 2d 900, 902 (Fla. 2d DCA 1984) (citations omitted). This Honorable Court has granted certiorari relief for very similar circumstances as in this case.

In *Bailey v. Miami-Dade Cty.*, the Plaintiff withdrew its expert's name and noted: “he was no longer a witness who would be called by Plaintiff at trial.” 186 So. 3d 1044, 1045 (Fla. 3d DCA 2015). ‘Nevertheless, Defendant sought to depose Dr. Raja, and Plaintiff moved for a protective order.” *Id.* This Honorable Court noted the following:

> The trial court denied Plaintiff's motion for protective order, finding that by providing the presuit affidavit to Miami-Dade County, Plaintiff waived any work-product privilege and that the deposition of Dr. Raja could proceed. This petition followed.
>
> Permitting the deposition of the opposing party's retained, non-testifying expert under the

> circumstances presented constitutes a departure from the essential requirements of law.

Id.

Notably, the lower court in this case did not even rule on Petitioner's *Motion for Protective Order*. (See App. at 310-319). In relying on another opinion from this Honorable Court, the *Bailey* court held "[t]he protection provided by rule 1.280(b)(5)(B) applies to experts initially disclosed as testifying witnesses that are later withdrawn as such. *Id.* at 1046 (quoting *Rocca v. Rones*, 125 So. 3d 370, 372 (Fla. 3d DCA 2013)).

> Petitioner Fernando C. Gomes, a co-defendant below, seeks certiorari review of the trial court's August 5, 2024 order denying Gomes's motion for a protective order that permits respondent Victor Maniglia, the plaintiff below, to depose Gomes's retained, non-testifying expert. We have jurisdiction. See Bailey v. Miami-Dade Cnty., 186 So. 3d 1044, 1045 (Fla. 3d DCA 2015). Maniglia's complaint alleges a variety of claims against Gomes that stem from purported violations of Florida's Adult Protective Services Act. Gomes retained Dr. Tracey Henley, a psychologist, who performed a psychological examination of Maniglia.1 Maniglia then not only requested and obtained Dr. Henley's report and other records relating to the examination,2 but sought also to depose Dr. Henley despite Gomes not identifying Dr. Henley as Gomes's testifying expert witness. Gomes moved for a protective order to prevent the deposition, but the trial court denied Gomes's motion.
>
> While Florida Rule of Civil Procedure 1.280(b)(5)(B) allows for a party to depose another party's non-testifying expert witness, the rule plainly requires the

> party seeking to depose the non-testifying expert to make a showing of exceptional circumstances.3 In denying Gomes's motion for a protective order, the trial court determined that Dr. Henley's rule 1.360 compulsory medical examination of Maniglia, in and of itself, constituted sufficient "exceptional circumstances" that entitled Maniglia to depose Dr. Henley. This determination constituted a departure from the essential requirements of law resulting in irreparable harm.
>
> . . .
>
> Contrary to the trial court's determination, nothing in rule 1.360(b) authorizes the deposition of a non-testifying defense expert who conducted a compulsory medical examination of a plaintiff. Because Maniglia did not make any showing of exceptional circumstances as required by rule 1.280(b)(5)(B), the trial court departed from the essential requirements of law by denying Gomes's motion for protective order. We, therefore, grant the petition and quash the August 5, 2024 order.

Gomes, 401 So. 3d at 438.

This Honorable Court has a long precedent of granting certiorari review when a lower court grants a request to dispose of a consulting expert without the requisite showing under Florida Rules of Civil Procedure Rule 1.280(5)(B).

> Petitioner, Malka Fink, seeks review of another portion of the order compelling "full and complete discovery from Plaintiffs' former medical expert Joan Pehta, M.D.," an expert witness who had been withdrawn by petitioner. Because no exceptional circumstances were shown to compel discovery of an expert not expected to testify at trial, we grant the petition and quash this part of the trial court's order.

Forman v. Fink by & Through Fink, 646 So. 2d 236, 237 (Fla. 3d DCA 1994).

> Stone is precisely the type of expert protected by rule 1.280. He was hired to examine the data and provide his expert opinion based only on the information that Rocca provided him. Stone seemingly has no personal knowledge of the underlying facts of the case other than those provided to him by Rocca or Rocca's attorney, and Stone has been withdrawn as a testifying witness. Based on these facts, Stone cannot properly be classified as a fact witness, and may only be deposed upon a showing of exceptional circumstances in which the defendants are unable to obtain similar information by different means. The defendants have not made such a showing. The defendants have hired their own expert witness and have been given access to Rocca's designated trial expert accountant.
>
> Should the trial court determine that Stone has pertinent factual information unrelated to what has been disclosed to him by Rocca or his attorneys or otherwise protected by privilege, or that exceptional circumstances apply because the defendants are unable to acquire relevant information by any other means, it can certainly order Stone's deposition for those limited purposes within the mandates of rule 1.280(b)(5)(B). Without such a showing, however, the orders requiring Stone's deposition and requiring Rocca to show cause why he should not be held in contempt of court depart from the essential requirements of law.
>
> Certiorari granted; orders quashed.

Rocca, 125 So. 3d at 372.

Numerous other Florida District Courts of Appeal agree with this proposition that the Respondent must show exceptional need and circumstances to depose a non-testifying consulting expert.

> Petitioners, defendants below in a personal injury action, seek certiorari review of the trial court's interlocutory order denying their motion for a protective order. Petitioners seek to prevent respondent from deposing a defense expert whose written report was previously disclosed to respondent, and whose name was initially listed on petitioner's trial witness list but was later withdrawn.
>
> We grant the petition for writ of certiorari on the authority of rule 1.280(b)(4)(B), Florida Rules of Civil Procedure. See also Gilmor Trading Corp. v. Lind Electric, Inc., 555 So. 2d 1258 (Fla. 3d DCA 1989); Ruiz v. Brea, 489 So. 2d 1136 (Fla. 3d DCA 1986). We reject respondent's contention that petitioner's prior disclosure of the expert's written report constituted a waiver of the work product privilege as to the facts known and opinions held by the expert that were not previously disclosed. See Truly Nolen Exterminating, Inc. v. Thomasson, 554 So. 2d 5 (Fla. 3d DCA 1989), rev. dismissed, 558 So. 2d 20 (Fla. 1990); Eastern Air Lines, Inc. v. Gellert, 431 So. 2d 329 (Fla. 3d DCA 1983).
>
> We also conclude that petitioners' initial listing of the expert on their trial witness list did not constitute a waiver of the work product privilege. Now that petitioners have withdrawn the expert's name from their trial witness list, respondent cannot depose the expert absent a showing of exceptional circumstances. Fla. R. Civ. P. 1.280(b)(4)(B).

Morgan v. Tracy, 604 So. 2d 15 (Fla. 4th DCA 1992).

> While all four experts had been disclosed at one point by Lewis, three of them were no longer included in his then-current witness list, which served to withdraw those three from the status of testifying witnesses such that they could not properly be deposed or later testify at trial. "The protection provided by rule 1.280(b)(5)(B) applies to experts initially disclosed as testifying witnesses that are later withdrawn as such." Rocca v. Rones, 125 So. 3d 370, 372 (Fla. 3d DCA 2013). When a party removes an expert's name from the witness list, that expert may not then be deposed. See Morgan v. Tracy, 604 So. 2d 15, 15 (Fla. 4th DCA 1992) ("Now that petitioners have withdrawn the expert's name from their trial witness list, respondent cannot depose the expert absent a showing of exceptional circumstances.").

R.J. Reynolds Tobacco Co. v. Lewis, 275 So. 3d 747, 750 n.4 (Fla. 5th DCA 2019).

> Even if an expert witness has relevant knowledge and opinions, the adverse party is limited in its ability to discover them under the general work product rule. 2See Charles W. Ehrhardt, Florida Evidence § 502.9 at 348 (2002 ed.). Discovery from experts not expected to be called as a witness at trial are not subject to discovery except as provided by Fla. R. Civ. P. 1.360(b)(relating to examination of persons) or "upon a showing of exceptional circumstances under which it is impracticable for the party seeking discovery to obtain facts or opinions on the same subject by other means." Fla. R. Civ. P. 1.280(b)(4)(B). Because Captain Kramer is not expected to be called as a witness at trial, and the Respondent has not made a showing of exceptional circumstances, the trial court erred by denying the City's motion for protective order relating to his expert testimony.

City of Jacksonville v. Rodriguez, 851 So. 2d 280, 283 (Fla. 1st DCA 2003).

> Petitioner ITD argues that the trial court's order violates Florida Rule of Civil Procedure 1.280(b)(3)(B), which provides that a party may discover facts known or opinions held by an expert retained in anticipation of litigation only as provided in rule 1.360(b) or upon a showing of exceptional circumstances. They further argue that because the respondents have not shown any exceptional circumstances, the trial court's order departs from the essential requirements of the law. We agree.
>
> The respondents argue that the trial court has the authority to order discovery when a party fails to comply with the Florida Rules of Civil Procedure discovery provisions. They further argue that the petitioner's alleged failure to serve a timely objection waived the objection.
>
> While it is true that a court may impose sanctions to comply with court-ordered discovery, the respondents failed to cite any rule or case which allows the court under these circumstances to order discovery from an expert who will not be used at trial.
>
> In our recent decision in The Wackenhut Corporation v. Crant-Heisz Enterprises, Inc., 451 So.2d 900 (Fla. 2d DCA 1984), we held that an expert retained in anticipation of litigation who will not be used at trial cannot be required to reveal the findings relevant to his investigation in the absence of proof that the adverse party cannot obtain the information without undue hardship.
>
> The rule clearly requires that an adverse party make a showing of exceptional circumstances to have access to this information. The respondents have failed to make such a showing.
>
> The petition for certiorari is granted, the writ is issued, and that portion of the trial court's order which

> authorizes the taking of the expert's deposition is set aside.

ITD Indus., Inc. v. Morrell, 459 So. 2d 1163, 1164 (Fla. 2d DCA 1984).

The Respondent has not and cannot meet its high burden in this case; thus, disclosure is not permitted. The very fact that the Respondent has its own jewelry expert proves it cannot make the required showing under Florida Rules of Civil Procedure Rule 1.280(5)(B). “This is far from a case in which the only meaningful source of data is a not-to-be-called expert engaged by one of the parties. *Gilmor Trading Corp. v. Lind Elec. Inc.*, 555 So. 2d 1258, 1260 (Fla. 3d DCA 1989). More importantly, Respondents are in possession of numerous alleged receipts, invoices, photographs, appraisals, videos, and other documents to support their purported claims; thus, he does not need to depose a non-testifying consulting expert of another party. “Without any undue hardship respondents can obtain the blind, photographs, and access to the house as other means of discovery.” *Horne v. K-Mart Corp.*, 558 So. 2d 1079, 1080 (Fla. 4th DCA 1990).

> Respondent has failed to overcome the prohibition on the discovery of protected work-product, because Respondent failed to demonstrate a "need" for access to the findings and/or opinions of Dr. Salazar. The record shows Respondent possesses the findings and opinions of its own expert, Ms. Karen Meyer. Ms. Meyer performed an on-site inspection of the school building on the same day as Dr. Salazar.

> Therefore, Respondent has ready access to the factual information underlying Dr. Salazar's opinions, and is able of obtaining an expert opinion regarding the condition of the school without undue hardship. The most Respondent could hope to learn from review of Dr. Salazar's findings and opinions is where they differ from the findings and opinions of its own expert. As this court has previously stated, mere inconsistency is not enough to establish the requisite need.

Nevin v. Palm Beach Cty. Sch. Bd., 958 So. 2d 1003, 1007 (Fla. 1st DCA 2007).

In this case, the Respondent states he is not calling Mr. Papper as his expert witness, and the jury cannot be informed that Mr. Papper is Petitioner's testifying expert because he has already been withdrawn and redesignated.

> Plaintiff does not presently ask this Court to require Defendant to designate Mr. Papper as an expert at trial or to call Mr. Papper as a witness in Defendant's case-in-chief.

(See App. at 12).

Florida law also does not permit the Respondent to call another party's non-testifying consulting expert at trial to circumvent the requirement of Florida Rules of Civil Procedure Rule 1.280(5)(B). Furthermore, Mr. Papper is not permitted to be called as a fact witness because Florida law forbids it.

> Based on these facts, Stone cannot properly be classified as a fact witness, and may only be deposed upon a showing of exceptional

> circumstances in which the defendants are unable to obtain similar information by different means.

Rocca, 125 So. 3d at 372.

As outlined in the binding case law above, it is clear that the Petitioner has shown each element for certiorari review and respectfully requests that this Honorable Court prohibit its non-testifying and consulting expert from being deposed or taking the stand at trial, as the Respondent has not made the required showing of exceptional circumstances under Florida Rules of Civil Procedure Rule 1.280(5)(B).

1. **Petitioner Anticipates Respondent will Rely on Wallace v. Citizens Prop. Ins. Corp., 352 So. 3d 409, 411 (Fla. 2d DCA 2022) Despite its Holding being in Direct Conflict with Binding Precedent from this District.**

Before the lower court, the Respondent repeatedly cited *Wallace v. Citizens Prop. Ins. Corp.*, 352 So. 3d 409, 411 (Fla. 2d DCA 2022) to claim he was entitled to not only depose Petitioner's non-testifying consulting expert but certiorari was not permitted. *See generally* (See App. at 7-86); *see also* (See App. at 281) ("Defendant lost the discovery issue, refuses to comply with the ruling, demands a written order before it will comply, objects to the written order when Plaintiff supplies one, and invokes an appellate remedy that *Wallace* has already held does not provide certiorari relief for examination concerning a voluntarily disclosed expert report.").

To avoid its burden under Florida Rules of Civil Procedure Rule 1.280(5)(B), the Plaintiff cites to *Wallace*, a Second District Court of Appeal decision that did not even address waiver or the work product privilege, and avoids any of the binding case law discussed above. Notably, the *Wallace* court held:

> We recognize that in interpreting the federal counterpart of rule 1.280(b)(5)(B), some courts have concluded that even if a party voluntarily discloses an expert's report in the preliminary stages of a case, any waiver of its privilege can be reversed if that party subsequently withdraws the expert from its witness list. See, e.g., Wreal LLC v. Amazon.com, Inc., No. 14-21385-CIV, 2015 U.S. Dist. LEXIS 35082, 2015 WL 1281042, at *3 (S.D. Fla. March 20, 2015) (quashing a subpoena to a reclassified expert because that expert's previously disclosed opinion had only been used for a preliminary injunction motion). **Although Florida may well follow suit, see, e.g., Morgan, 604 So. 2d at 15, we do not resolve this matter in terms of "waiver" per se**; rather, applying the certiorari framework, we simply conclude that Wallace has not demonstrated irreparable harm if Citizens is allowed to depose Garcia on his previously disclosed report.

Wallace, 352 So. 3d at 412 n.3 (emphasis added).

What is relevant is *Wallace*'s reliance on *Morgan v. Tracy*, 604 So. 2d 15 (Fla. 4th DCA 1992). In *Morgan*, the Fourth District Court of Appeals held the following:

> Petitioners seek to prevent respondent from deposing a defense expert whose written report was

> previously disclosed to respondent, and whose name was initially listed on petitioner's trial witness list but was later withdrawn.
>
> We grant the petition for writ of certiorari on the authority of rule 1.280(b)(4)(B), Florida Rules of Civil Procedure. We reject respondent's contention that petitioner's prior disclosure of the expert's written report constituted a waiver of the work product privilege as to the facts known and opinions held by the expert that were not previously disclosed.
>
> We also conclude that petitioners' initial listing of the expert on their trial witness list did not constitute a waiver of the work product privilege. Now that petitioners have withdrawn the expert's name from their trial witness list, respondent cannot depose the expert absent a showing of exceptional circumstances. Fla. R. Civ. P. 1.280(b)(4)(B).

Id. (citation omitted).

As the *Wallace* court expressly acknowledged and cited the requirements of Florida Rules of Civil Procedure Rule 1.280(5)(B) and ignored case law stating certiorari was proper, this Honorable Court should disregard this decision as an outlier and follow the well-established legal precedent outlined above.

CONCLUSION

"Certiorari review considers whether the correct law was applied." *Cent. Fla. Invs., Inc. v. Orange Cnty.*, 295 So. 3d 292, 295 (Fla. 5th DCA 2019). As shown above, the trial judge did not apply the correct law on multiple occasions, and this order will result in harm to Petitioner that cannot

be remedied or corrected on final appeal. “A failure to observe the essential requirements of the law has been held synonymous with a failure to apply ‘the correct law.’ ” *Fassy v. Crowley*, 884 So. 2d 359, 364 (Fla. 2d DCA 2004) (quoting *State Dev. v. Heggs*, 658 So. 2d 523, 530 (Fla. 1995)). For the reasons above, the Petitioner respectfully requests that this Honorable Court grant its *Petition for Writ of Certiorari* and prohibit the Respondent from deposing its non-testifying consulting expert, which is prohibited under Florida Rules of Civil Procedure Rule 1.280(5)(B).

Respectfully Submitted,

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CERTIFICATE OF SERVICE

WE HEREBY CERTIFY a true and correct copy of the foregoing was served via electronic mail pursuant to Florida Rule of Judicial Administration 2.516 to: **Joshua S. Novak, Esq.**, and **Todd R. Falzone, Esq.**, Kelley Uustal, 500 N Federal Highway, Suite 200, Fort Lauderdale, FL 33301, via e-mail to: jsn@kulaw.com; trf@kulaw.com; natalia@kulaw.com; and maria@kulaw.com; to: **Patrick Folley, Esq., Rachel K. Beige, Esq. and Charlene Jones, Esq.**, Cole, Scott & Kissane, P.A., 222 Lakeview Ave., Suite 500, West Palm Beach, FL 33401, via e-mail to: Patrick.folley@csklegal.com; Rachel.beige@csklegal.com; mayber.delgado@csklegal.com; Charlene.jones@csklegal.com; and to: **Therese J. Adipietro, Esq.**, The MGFD Law Firm, P.A., 2131 Alt 19, Suite A, Palm Habor, FL 34683, via e-mail to: eservice@mgfdlaw.com; on this 14th day of October, 2026.

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the font requirements of Florida Rule of Appellate Procedure 9.045 because it is prepared in Arial 14-point font and complies with the requirements of Fla. R. App. P. 9.210(a)(2) because it is less than 50 pages and contains fewer than 13,000 words.

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